



COMPLAINTS PROCEDURE

Scope

The Complaints Procedure exists to enable those concerns of parents, carers and others, which cannot be resolved through informal discussion, to be investigated and, if possible, resolved.

The Complaints Procedure is not open to employees of Bright Futures School in respect of matters relating to their employment.

Complaints made under this procedure may relate to any aspect of the school's services to children and families.

Complaints made about the behaviour of a staff member will be investigated and addressed under school's personnel procedures.

Making your concerns known

We need to know if you are concerned about any aspect of the school's provision, especially in relation to your own child. We cannot deal with problems if you do not tell us about them. Complaints need to be considered, and resolved, as quickly and efficiently as possible. Our complaints procedure outlines the different stages of the process and what the expectations are at the end of each stage.

Reasonable adjustments

If you have a disability, it may be appropriate that reasonable adjustments are made if you're placed at a substantial disadvantage because of your disability compared with non-disabled people or people who don't share your disability. It is the complainant's responsibility to make the school aware of their disability at stage 1 of the complaints process and to outline what accommodations are required at any/all stages of the process so that the school can consider whether the adjustments proposed are reasonable and if so, take steps to implement them.

Stage 1 – Informal resolution

Your complaint or concern should be discussed with the Head of Learning. Most difficulties are resolved at this stage. If you are not able to come into the school you can also put your concerns in writing. It is anticipated that most issues can be resolved through a constructive dialogue and without recourse to formal procedures. However, if the issue is not resolved you should refer your concerns in writing to the Head of Development (Stage 2) within 5 working days of the meeting with the Head of Learning.

If you do not submit your concerns to the Head of Development within 5 working days of the

meeting or correspondence with the Head of Learning, the complaint case will be closed.

Stage 2 – Written response from the Head of Development to your written concerns

The Head of Development will undertake any further investigation that is necessary and respond in writing within 10 working days of receiving your written outline of outstanding complaint/s. If the matter is complex, and this timescale cannot be met, you will be notified and kept informed of progress.

If you are not satisfied with the Head of Development's written response at Stage 2, you will have 10 working days from the date of School's Stage 2 response to outline in writing any issues that you are still dissatisfied with and why, and to request that the complaint proceeds to Stage 3: Complaints Panel.

Your outline of outstanding concerns will not include any new matters of complaint, or any issues not already raised in your Stage 1 complaint.

If you do not reply within the 10 day timeframe with details of why you are still dissatisfied and why, then the complaint case will be closed.

Stage 3 – Complaints Panel

The panel will comprise 3 people who have had no previous involvement in your complaint, and at least 2 of whom have no immediate connection to Bright Futures School Limited.

This panel will consider the information and evidence already submitted by you and by the school at complaint stages 1 and 2.

No new issues of complaint will be accepted at this stage and only evidence directly related to the complaint issues already outlined by you will be accepted.

It may take some time to identify panel members but this will be done as quickly as practically possible. The panel will be convened within 15 working days of being established.

The Chair of the panel will write to you in advance of the panel meeting, asking for any evidence that you have not already submitted to substantiate any of the comments/allegations you are making. The Chair will provide a timeframe submission of such evidence. If you do not adhere to the timeframe outlined by the Chair, the complaint will be closed at this point.

Once the Chair is in receipt of any evidence you submit within the timeframe outlined, this will be shared with the school. The school's representative/s will be given time (to be decided by the Chair) to prepare a response to the evidence that you submit so that it can be presented at the complaints panel hearing. This includes requesting information from other members of school staff and/or requesting the attendance of other school (or other relevant) staff at the Stage 3 complaints panel hearing.

The Chair will then inform you of a date for the panel meeting.

The framework for the complaint panel hearing is available from school on request at any time. It will be sent to the complainant/s by the panel Chair ahead of a Stage 3 complaint meeting.

Following the panel meeting, the Chair of the panel will write to you outlining the findings and recommendation/s of the panel within 5 working days of the hearing. If the matter is complex, and this timescale cannot be met, you will be notified and kept informed of progress.

If the complaint involves a member of staff at school, that person will also be entitled to receive a copy of the complaint.

A copy of the findings and recommendations from any complaint will be made available at the school site.

A written record will be kept in school of any/all complaints that have been made; whether and at what stage they were resolved; together with a record of any action the school took as a result of the complaint (whether or not the complaint was upheld).

All correspondence, statements and records relating to any complaints will be kept confidential but may be shared with an Ofsted Inspector during an HMI inspection.

Further Appeal

The decision of the Complaints Panel is the final stage in the consideration of your complaint. However, there may be circumstances in which it would be appropriate for you to raise your concerns
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with Oldham Council or the Department for Education or OFSTED, who are unable to investigate the complaint, but can check that the complaints procedure has been followed correctly. You should seek advice from those bodies as to whether your complaint falls within their scope for consideration.

Vexatious, Unreasonable or Malicious Complaints

The School recognises the importance of the Complaints Procedure. We are also aware that on rare occasions complainants may seek to use the procedure to raise frivolous issues, may not engage with the process in a constructive way, may seek to re-open issues which have already been resolved or may make a complaint that is malicious in nature i.e. to cause reputational damage or otherwise make life difficult for the school.

In these exceptional circumstances, the Head of Development will submit the details to the Complaints Panel and ask for a decision as to whether or not the complainant should be excluded from the complaints process or for direction on any conditions that may be attached to future complaints from that person.

Covert recordings and the complaints process

Complainants should obtain the informed consent of all parties before recording conversations or meetings in any format (audio, video etc). Failure to do so will be interpreted as a vexatious act.

The school reserves the right to refuse permission for a complainant to use a recording that has been obtained covertly to substantiate any part of the complaint. This is supported by the DfE's guidance on best practice for dealing with complaints.

Number of complaints

2020-2021	One Complaint investigated and redirected to Speech and Language Therapy
2021-2022	None
2022-2023	One Complaints procedure revised and updated; framework for conduct of a complaints panel introduced
2023-2024	One Complaints procedure revised and updated; framework for conduct of a complaints panel revised and updated
2024-2025	None
2025-2026	None

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